Case No. 21-5074

IN THE
UNITED STATES COURT OF APPEALS
FOR THE SIXTH CIRCUIT

J.B.-K.-1, J.B.-K.-2, J.A., K.A.-1, B.A., C.B., N.B., C.H.-1, C.H.-2, I.T., D.T., J.S.-1, J.S.-2, C.R., A.R.-1, A.R.-2, K.E., T.B., N.C., AND T.C., ALL MINORS, IN THEIR INDIVIDUAL CAPACITIES AND AS REPRESENTATIVES OF THE CHILDREN'S CLASS; E.B., K.A.-2, T.A., E.A., C.A., H.D., R.W., L.A., S.T., C.H.-3, J.D., K.G., A.H., AND A.C., AS REPRESENTATIVES OF THE CAREGIVERS' CLASS; AND J.B.-K.-1 (A MINOR), J.B.-K.-2 (A MINOR), J.A. (A MINOR), K.A.-1 (A MINOR), B.A. (A MINOR), C.B. (A MINOR), N.B. (A MINOR), C.H.-1 (A MINOR), C.H.-2 (A MINOR), I.T. (A MINOR), D.T. (A MINOR), J.S.-1 (A MINOR), J.S.-2 (A MINOR), C.R. (A MINOR), A.R.-1 (A MINOR), A.R.-2 (A MINOR), K.E. (A MINOR), T.B. (A MINOR), N.C. (A MINOR), T.C. (A MINOR), E.B., K.A.-2, T.A., E.A., C.A., H.D., R.W., L.A., S.T., C.H.-3, J.D. , K.G., A.H., AND A.C., AS REPRESENTATIVES OF THE NOTICE AND HEARING CLASS

Plaintiffs – Appellants

v.

SECRETARY OF THE KENTUCKY CABINET FOR HEALTH AND FAMILY SERVICES, COMMISSIONER OF THE KENTUCKY DEPARTMENT FOR COMMUNITY BASED SERVICES, AND ELIZABETH CAYWOOD, IN HER OFFICIAL CAPACITY AS DEPUTY COMMISSIONER OF THE KENTUCKY DEPARTMENT OF COMMUNITY BASED SERVICES

Defendants – Appellees

(continued on inside cover)

On Appeal from the United States District Court
for the Eastern District of Kentucky, Frankfort Division
The Honorable Gregory F. Van Tatenhove
Civil Action No. 3:18-cv-00025-GFVT

BRIEF OF PLAINTIFFS-APPELLANTS

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CORPORATE DISCLOSURE STATEMENT

Pursuant to Sixth Circuit Rule 26.1, Appellants make the following disclosure:

1. Is said party a subsidiary or affiliate of a publicly owned corporation? If yes, list below the identity of the parent corporation or affiliate and the relationship between it and the named party:

No. Appellants consist of individual children and caregivers and certified classes. They do not have a parent corporation, and there is no publicly held corporation owning ten percent or more of stock.

2. Is there a publicly owned corporation, not a party to the appeal, that has a financial interest in the outcome? If yes, list the identity of such corporation and the nature of the financial interest?

No.

Respectfully submitted,

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Date: April 23, 2021

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STATEMENT IN SUPPORT OF ORAL ARGUMENT

Appellants request oral argument in this appeal under Sixth Circuit Rule 34(a). While Appellants submit that the record and the briefs demonstrate that the district court erred in granting partial judgment in favor of Appellees—and against them—on the legal questions presented upon appeal, oral argument will be useful to further explain why the district court's ruling departed from the statutory text and results in a judicially created, non-textual prerequisite to eligibility for foster care maintenance benefits under the Child Welfare Act.

JURISDICTIONAL STATEMENT

Plaintiff-Appellant foster children and caregivers, on behalf of themselves and as class representatives for the Children's Class, the Caregiver's Class, and the Notice and Hearing Class ("Appellants") brought this action in the United States District Court for the Eastern District of Kentucky seeking injunctive and declaratory relief against the Defendant-Appellee Kentucky Cabinet for Health and Family Services ("CHFS"), the Commissioner of the Kentucky Department for Community Based Services ("DCBS"), and Elizabeth Caywood, in her official capacity as deputy commissioner of DCBS ("Caywood") (collectively referred to herein as the "Cabinet"). [*See* Amended Complaint, R. 35, Page ID # 254-97; R. 31-1 and 31-2, Page ID # 199-246].

Appellants specifically sought injunctive relief and a judicial declaration that the Cabinet: (1) violated 42 U.S.C. § 672(a)(1) by denying Foster Care Maintenance Payments ("FCMP") to Appellants; (2) deprived Appellants of a fair hearing with respect to their FCMP eligibility in violation of 42 U.S.C. § 671(a)(12) and 45 C.F.R. 1355.30(p)(12); (3) violated the Fourteenth Amendment's Due Process Clause by depriving them of FCMP benefits with no administrative hearing or process; and

(4) violated the Fourteenth Amendment's Equal Protection Clause by denying FCMP benefits solely on the basis of a child's temporary custody with a relative or fictive-kin caregiver. [*Id.*]. The claims were asserted as a class action by a range of children and caregivers on behalf of the four classes defined by the district court. [*See id.*; Op. & Order Granting Class Certification, R. 116, Page ID # 3615-36].

Appellants' substantive claims arise under 42 U.S.C. § 1983 to redress violations of federal statutory and constitutional law. The district court had original jurisdiction under 28 U.S.C. §§ 1331 and 1343(a)(3), and authority to grant declaratory relief per 28 U.S.C. §§ 2201 and 2202. Appellants timely filed their Notice of Appeal from the district court's final judgment on January 22, 2021. [Notice of Appeal, R. 151, Page ID # 3866]. This Court in turn has jurisdiction according to 28 U.S.C. § 1291.

STATEMENT OF ISSUES

1. Whether a child's placement and care are the responsibility of the Cabinet for FCMP eligibility when a removal court places a child directly into the temporary custody of an approved relative or fictive-kin caregiver, rather than into the Cabinet's legal custody?

STATEMENT OF THE CASE

As part of the Adoption Assistance and Child Welfare Act of 1980, Congress provided a statutory scheme to extend financial benefits to

needy children removed from their home and placed in the home of a foster caregiver. Congress outlined the specific conditions for eligibility for such foster care maintenance payments ("FCMP"). *See* 42 U.S.C. § 672; *see also* 45 C.F.R. §§ 1355, 1356. The federal program requires States that receive federal block grants under Title IV-E of the Social Security Act—including Kentucky—to extend FCMP benefits according to the statutory conditions outlined in Section 672.

These conditions generally provide that FCMP benefits are to be paid to care for needy children removed from their homes of origin by state court order due to substantiated findings of dependency, neglect, or abuse ("DNA"), and placed in the temporary care of an approved, substitute foster caregiver. FCMP eligibility hinges on four elements:

1. If the child is removed from his or her home of origin pursuant to a judicial determination that continuation in the home of origin would be contrary to the child's welfare and that reasonable efforts to prevent removal have been made;

2. If the child's placement and care are the responsibility of the State agency administering the state's Title IV-E plan[1];

[1] This element is more simply referred to throughout as the Cabinet's "placement and care responsibility."

3. If the child is placed in an approved or licensed foster family home; and

4. If the child was eligible for payments pursuant to the Aid to Families with Dependent Children ("AFDC") program while in their home of origin.

See 42 U.S.C. § 672. The Appellees are officials of the Cabinet—the single state agency that oversees and administers Kentucky's state plan for foster care and adoption assistance, as approved by the U.S. Department for Health and Human Services (the "Department")—and officials of the Cabinet's designated sub-agency, the DCBS, which is tasked with assisting the Cabinet in administration of the state plan. *See* 42 U.S.C. § 671, *et seq.*; KRS 194A.010(2), 194A.030(8).

Over time, however, the Cabinet began deviating from Section 672's terms by imposing extra-textual conditions on eligibility for FCMP benefits. The Cabinet implemented a policy of discriminating against children placed into the temporary custody of a relative or fictive-kin caregiver. Recently, this Court's decision in *D.O. v. Glisson*, 847 F.3d 374 (6th Cir. 2017) confirmed that Kentucky's policy of denying benefits to otherwise FCMP-eligible children placed into foster care with a *relative* caregiver "plainly violate[d] federal law." *Id.* at 383.

But in the immediate aftermath of *Glisson*, the Cabinet adjusted state policy, first through "emergency" regulations that were later made permanent in January 2018. *See* 922 KAR 1:140E [R. 79-7, Page ID # 1934] (emergency regulation); 922 KAR 1:140 [R. 79-7, Page ID # 1940] (permanent); *see also* 922 KAR 1:320 [R. 79-7, Page ID #1947]. These subsequent regulatory changes ensured that "[a] relative or fictive kin who accepts custody of a child removed from the child's home of origin by a court shall not be entitled to reimbursement," and this ultimately deprived each Appellant foster child of any FCMP financial support. 922 KAR 1:140 [R. 79-7, Page ID # 1940]. The Commonwealth similarly determined that "[a] caretaker relative's or fictive kin's ineligibility for reimbursement in accordance with 922 KAR 1:140," consists as a "Matter[] Not Appealable through an Administrative Hearing," and the decision to deny FCMP benefits to relative or fictive kin caregivers "shall not be subject to review through an administrative hearing." 922 KAR 1:320 [R. 79-7, Page ID# 1947].

In this case, for each Appellant foster child, the Cabinet recommended to the DNA removal court the child's placement by way of temporary custody in a Cabinet-approved relative or fictive-kin foster

caregiver . [*See* Second Amended Complaint, R. 35, Page ID # 255, 270-71; Appellants' Motion for Preliminary Injunction, R. 79, Page ID # 1797, 1811-12]. During each child's temporary custody, the Cabinet prepared the child's case plan, monitored the child's progress, visited the child in the caregiver's home, attempted parental reunification, designed Prevention Plans and/or Aftercare Plans for the child and caregiver, and retained the legal obligation to remove and re-place the child in the event of a failure of the temporary custodial placement with the relative or fictive-kin caregiver. [*See id.* at Page ID # 1797, 1813]. Despite all of this, the Cabinet denied FCMP benefits to each Appellant child during the child's temporary custody with the relative or fictive-kin caregiver.

On top of that, the Cabinet further denied Appellants any opportunity to challenge the Cabinet's denial of FCMP eligibility or to appeal that denial as part of any administrative hearing. The Cabinet also denied FCMP benefits by employing the Relative and Fictive Kin Caregiver Agreement, which misinforms the recipient about the availability of FCMP benefits (called "per diem" in the Agreement), and together with the Cabinet's regulations purportedly strips Appellants of any right to administrative hearing concerning FMCP. [*See* R. 31-2, Page

ID # 242-46; 922 KAR 1:320, R., 79-7, Page ID # 1947]. In essence, beyond denying FCMP benefits to relative and fictive-kin caregivers on behalf of their foster children, the Cabinet insulated itself from review by affirmatively denying Appellants statutory and constitutional due process of law to question its determination. *See Matthews v. Eldridge*, 424 U.S. 319 (1976); 42 U.S.C. § 672(a)(12) (requiring "a fair hearing before the State agency to any individual whose claim for benefits . . . is denied or not acted upon with reasonable promptness"); *Timmy S. v. Stumbo*, 916 F.2d 312, 315-17 (6th Cir. 1990).

Altogether, the Cabinet adopted and executed amended regulations, policies, and practices directing that each DNA child removed and ordered into the temporary custody of a relative or fictive kin is ineligible for FCMP benefits unless the Cabinet first obtains temporary legal custody of the child during the removal period. [Mot. for Class Certification, R. 80, Page ID # 2236-37]. These same practices in turn specifically deny adequate and timely notice of FCMP benefits to eligible DNA children and their caregivers, while also depriving them of access to any hearing or appeal process simply because of the temporary custody relationship between the child and his or her relative or fictive-

kin caregiver. [*Id.*]. These unilateral state policy choices directly conflict with federal law, and result in arbitrary and absurd state administrative decisions concerning whom the Cabinet deems eligible for FCMP benefits.

In two heartbreaking instances involving two households of Appellant-class representatives, multiple sibling children were removed by the state court from the children's respective homes of origin, and were temporarily placed with Cabinet-approved relative or fictive-kin caregivers. However, the Cabinet's policy choice that children are only eligible for FCMP benefits if the Cabinet obtains legal custody of the child resulted in only one sibling in each of these households being deemed eligible for FCMP benefits while the other siblings – removed from same abusive home of origin and placed with the same relative or fictive-kin caregiver – were deemed ineligible. [*See* Depo. of K.G., R. 67-14, pp. 9-15; (Page ID # not available); Depo. of R.W., R. 71-11, pp. 23-24 (Page ID # not available); *see also* Depo. of Cabinet 30(b)(6) L. Estill, R. 79-5, Page ID # 1896]. This inconsistency in FCMP eligibility between children removed from the *same* home and placed with the *same* caregiver as their siblings is wholly arbitrary and foreign to federal law.

Appellants accordingly filed suit. [Amended Complaint, R. 35, Page ID # 254-297]. Due to the magnitude of their claims, Appellants sought certification as a class action. [Motion to Certify Class, R. 80, Page ID # 2230-2250]. The district court certified four classes:

- *Children's Class* – all children in the Commonwealth of Kentucky who, between June 16, 2014 and April 1, 2019, were brought before a dependency, neglect or abuse proceeding and were removed from their home of origin into the temporary custody of a relative or fictive kin caregiver;

- *Caregivers' Class* – all relative or fictive kin caregivers throughout the Commonwealth of Kentucky who accepted temporary placement of a member of the Children's Class prior to April 1, 2019;

- *Cabinet Custody Class* – all children in the Commonwealth of Kentucky who, after January 17, 2017, are or were eligible to receive FCMP benefits under the Cabinet and DCBS's interpretation of *D.O. v. Glisson* that "cabinet custody" is a required element for the Title IV-E benefits and have not received benefits from the date when the Cabinet placed them with relative or fictive kin caregivers, and the relative and fictive kin caregivers of those children; and

- *Notice and Hearing Class* – all children in the Commonwealth of Kentucky removed from their homes in a DNA proceeding and temporarily placed with relative or fictive kin caregivers, as well as all such relative or fictive kin caregivers, who, between June 16, 2014 and April 1, 2019, were not timely provided notice of their potential eligibility for FCMP benefits by the Cabinet or DCBS upon the children's placement with the relative or fictive kin caregiver, or for whom FCMP benefit eligibility was denied without

> timely and proper notice of their right to challenge and appeal such a denial in a fair evidentiary hearing with due process review.

[Op. & Order Certifying Classes, R. 116, Page ID # 3635-3636].

Appellants initially sought preliminary injunctive and declaratory relief, and both parties filed dueling dispositive motions. [Preliminary Injunction Mot., R. 79, Page ID # 1797-1839; Cabinet Mot. for Summary Judgment, R. 96, Page ID # 2575-2599; Cabinet Mot. to Dismiss, R. 97, Page ID # 2724].[2] The district court denied Appellants' motion and granted the Cabinet summary judgment.[3] [Memorandum Op. & Order, R. 128, Page ID # 3726-47; Judgment, R. 129, Page ID # 3748-49]. The linchpin of the court's holding rests on its conclusion that Appellants were "not entitled to FCMP benefits" because they "were not in the custody of the Cabinet prior to being placed in the relative caregiver's home." [*Id.* at Page ID # 3740]. The district court rejected Appellants' claims entirely upon the notion that Section 672(a) and Title IV-E

[2] Appellants did not file a separate motion for summary judgment, but their initial motion for injunctive and declaratory relief was later deemed by the district court as one seeking summary judgment.

[3] The district court did grant Appellants' partial summary judgment with respect to the Cabinet Custody Class. The Cabinet did not cross-appeal that judgment, and therefore, that portion of the judgment is not before this Court.

implicitly *require* the Cabinet to have legal custody in order to bear "responsibility" for placement and care for purposes of FCMP eligibility. The lower court similarly denied Appellants' claims of entitlement to administrative notice and hearing and due process violations as a result of this threshold conclusion. [*Id.* at Page ID # 3740-44]. The district court granted the claims of the Cabinet Custody Class, and those claims have not been appealed to this Court. [*See id.* at Page ID # 3746-47; Notice of Appeal, R. 151, Page ID # 3866].

After entering its order on post-judgment motion practice [*see* Order, R. 150, Page ID # 3855-65], the district court's judgment became final and this appeal followed. [*See* Judgment, R. 129, Page ID # 3748-49; Notice of Appeal, R. 151, Page ID # 3866].

SUMMARY OF ARGUMENT

The entirety of the district court's ruling rests on one false premise: that the Cabinet is required to be the legal custodian of an otherwise FCMP-eligible child in order for the Cabinet to bear responsibility for placement and care of the child. When Congress creates an entitlement program such as the Title IV-E foster care maintenance program, States are not free to impose their own limitations or restrictions on benefit

eligibility under the program. Yet, this is precisely what the Cabinet did following this Court's decision in *D.O. v. Glisson*, 847 F.3d at 374.

After *Glisson*, the Cabinet chose a policy that denies an eligible foster child from receiving FCMP benefits solely because the State DNA court—after the child's removal—ordered the child into temporary custody of a relative or fictive-kin caregiver. Under State law, such a temporary custody order provides the Cabinet with no legal authority to unilaterally change placement without going back to court. If the Cabinet, on the other hand, receives temporary custody of the child, it has the exclusive State-law authority to change the child's placement without going to court. This nuanced difference in how State-law treats the Cabinet's legal *authority* to change a child's temporary placement forms the basis of the district court's error in this appeal.

The district court seized upon this nuance, and conflated the federal-law requirement of *responsibility* for the child's placement and care with the Cabinet's State-law *authority* to make unilateral placements when the child is in its custody. But federal law's *responsibility* requirement is not identical to State-law *authority* to change temporary placement. They are entirely different concepts.

The text and context of the words "placement and care responsibility" as used in 42 U.S.C. § 672(a)(2)(B) and Title IV-E indicates *responsibility* is a much broader term than legal *authority* to place a child with or without court involvement. Responsibility merely requires the Cabinet to be "answerable" or "accountable" in accordance with its statutory "trust, duty, or obligation." And that's how Congress used the word "responsibility" in Section 672(a)(2)(B), limiting its scope with the modifiers "placement and care."

The larger context of Title IV-E reinforces the broader construction of responsibility as it is used in Section 672(a)(2)(B). Numerous requirements are specified in Title IV-E for the designated "state agency" to perform, supervise, or manage in DNA situations. Prior to removal, this includes protecting the child, providing family support services, and using reasonable efforts to prevent unnecessary removals. After removal, the agency is required to approve (or license) substitute temporary caregivers, recommend to the removal court temporary placement and care options to the removal court, make reasonable efforts to reunify the family. If reunification is not possible, the State agency must otherwise plan, monitor, document and report to the court on the child's progress

in temporary placement and care, and timely progress towards achieving an appropriate permanent placement goal. Title IV-E expects the agency alone to be "responsible" for each of these duties. *See, e.g.,* 42 U.S.C.§§ 671(a), 675, 675a. This *responsibility* does not equate to the agency's legal *authority* to change a temporary placement, with or without intervention of court.

The Cabinet is Kentucky's single state agency, and Kentucky law *assigns* the Cabinet the duty and obligation to perform, supervise, or manage each of Title IV-E's placement and care requirements. By assigning the Cabinet these responsibilities, Kentucky law makes it accountable and answerable to DNA courts for timely and proper performance of the federal requirements. That is all Section 672(a)(2)(B) means by requiring the "child's placement and care [be] the *responsibility* of" the Cabinet.

By requiring a judicial determination of state custody, the district court erroneously engrafted a non-textual precondition to FCMP eligibility without any authoritative support. Neither the text of Section 672(a)(2)(B) nor the surrounding Title IV-E provisions include any mention of a custody requirement or the necessity of a state custody

judicial determination. Congress, to be sure, imposed state "judicial determinations" for other areas of FCMP eligibility, and expressly required them in Sections 672(a)(2)(A)(ii) and 671(a)(15). It also referenced them in the statutory definition of "legal guardianship" as a "judicially created relationship" granting the caregiver "custody" of the child. 42 U.S.C. § 675(7). If Congress wanted *responsibility* for placement and care to require court-ordered custody in the state agency, it would have said so. It did not.

If any doubt remains regarding Congressional intent concerning the meaning of "responsibility" for "placement and care," The Department and the Administration for Children and Families ("ACF") have promulgated regulations and provided regulatory guidance expressly stating that "legal custody" in the state is *not* a requirement for the state agency to bear *responsibility* for placement and care. These regulatory provisions, enacted for the specific purpose of carrying out Section 672's requirements, deserve more attention and deference than they received from the district court.

Generally, courts defer to a federal agency's interpretation of its own enabling act, and its rules and regulatory enforcement guidance. *See*

Chevron U.S.A., Inc. v. Nat. Res. Def. Council, Inc., 467 U.S. 837, 844 (1984); *Kisor v. Wilkie*, 558 U.S. ---, 139 S.Ct. 2400, 2412 (2019). As the federal agency tasked with administering Title IV-E, the ACF published a Child Welfare Manual and Title IV-E Foster Care Eligibility Review Guide, which expressly provide that state custody is *not* a prerequisite for FCMP eligibility. The Department's rules and regulatory guidance are entitled to judicial deference, but the district court did not appropriately consider them.

Finally, the district court feared if Section 672 was not read to mandate formal state custody for FCMP eligibility, the "placement and care responsibility" requirement would be superfluous. This fear is ameliorated, however, when considering the statutory text—in light of the whole act—and aided by canons of construction and federal regulatory guidance. Section 672(a)(2)(B) requires only that the state agency have *responsibility* for placement and care, and that responsibility does not require a court order of state custody. Kentucky law already *assigns* and *obligates* the Cabinet to perform, supervise, or manage all of Title IV-E's requirements for "placement and care" irrespective of temporary custody. Because Congress envisioned a broad

standard of eligibility, it specifically used the term *responsibility* to avoid an unnecessary usurpation of state court proceedings.

STANDARD OF REVIEW

The district court's opinion and judgment was entered upon cross-dispositive motions including summary judgment motions. [*See* Memorandum Op. & Order, R. 128, Page ID # 3726-47; Judgment, R. 129, Page ID # 3748-49]. The Sixth Circuit reviews a district court's grant of summary judgment *de novo*, using the same standard employed by the district court. *See B.F. Goodrich Co. v. U.S. Filter Corp.*, 345 F.3d 587, 591 (6th Cir. 2001) (citing *Nat'l Enters., Inc. v. Smith*, 114 F.3d 561, 563 (6th Cir. 1997). "[T]he standards upon which the court evaluates the motions for summary judgment do not change simply because the parties present cross-motions." *Taft Broadcasting Co. v. U.S.*, 929 F.2d 240, 248 (6th Cir. 1991) (citing *Home for Crippled Children v. Prudential Ins. Co.*, 590 F.Supp.1490, 1495 (W.D.Pa. 1984)); *see also U.S. S.E.C. v. Sierra Brokerage Servs., Inc.*, 712 F.3d 321, 327 (6th Cir. 2013) (same standard of review for cross-motions for summary judgment).

Summary judgment is appropriately entered where "there is no genuine issue as to any material fact and that the moving party is

entitled to a judgment as a matter of law." Fed. R. Civ. P. 56(c). In deciding such a motion, this Court must view the factual evidence and draw all reasonable inferences in favor of the non-moving party. *B.F. Goodrich Co.*, 245 F.3d at 591-92 (citing *Nat'l Enters.*, 114 F.3d at 563). "The ultimate inquiry is 'whether the evidence presents a sufficient disagreement to require submission to a jury or whether it is so one-sided that one party must prevail as a matter of law.'" *U.S. S.E.C.,* 712 F.3d at 327 (quoting *Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242, 251-52 (1986)).

ARGUMENT

I. THE DISTRICT COURT MISINTERPRETED THE MEANING OF RESPONSIBILITY FOR PLACEMENT AND CARE UNDER 42 U.S.C. § 672(a)(2)

When Congress creates a federal entitlement program and establishes the parameters and eligibility requirements for federal benefits, states are not free to impose their own independent eligibility limitations simply because they are tasked with backstop administrative functions. *See School Dist. of City of Pontiac v. Secretary of U.S. Dep't of Educ.*, 584 F.3d 253, 268 (6th Cir. 2009) (Congress has broad power to set the terms and conditions upon which it gives states federal funds). Here,

the Cabinet believes Kentucky state and administrative law permits it to impose heightened eligibility standards for FCMP benefits by withholding benefits to otherwise eligible foster children unless the DNA court issued a temporary custody order placing the foster child into the Cabinet's formal legal custody. This precondition of state custody is notably absent from any federal statute and is in fact rejected by the federal government as an element of FCMP eligibility.

Section 672 and Title IV-E are not so restrictive. Those statutes use general terms to extend broad standards of eligibility; all that is required is that the "placement and care [of the child] are the responsibility of" the Cabinet. 42 U.S.C. § 672(a)(2)(B). The district court's analysis went too far in attempting to reconcile the meaning of this federal term with the appropriate role of state law in this overall scheme, and attempted to define the meaning of "responsibility" for "placement and care" as shaped by Kentucky's administration of the federal program. The lower court's well-intended, yet ultimately short-sighted, textual analysis errs in improperly constraining the scope of the FCMP program in a way that both conflicts with federal statutory text and disregards the way the law is practically administered. The end result is an unworkable, judicially

created definition of placement and care responsibility that the statutory text simply cannot bear. This Court should reverse and remand.

A. The District Court Misconstrued Section 672 and Failed to Consider Relevant Statutory Context

The district court's conclusion that the Cabinet's formal custody is a prerequisite to placement and care responsibility under Section 672 hinges on two underlying premises. *First*, the lower court held that because the DNA courts placed Appellant children in the immediate custody of relative or fictive-kin caregivers, the Cabinet is unable under state law to dictate or change a child's placement without court approval and thus lacks "placement" control. [*See* Memorandum Op. & Order, R. 128, Page ID # 3739]. In reaching this conclusion, the district court conflates the Cabinet's *responsibility* for the child's placement with the Cabinet's state law *authority* to make unilateral placement determinations. Federal law requires only the former, and not the latter.

Second, the district court erred in concluding that an interpretation of Section 672 that does not require the Cabinet's formal custody makes the entire "placement and care responsibility" criterion superfluous. [*Id.* at Page ID # 3739-40]. According to the district court, if custody is not required—and if the Cabinet assumes responsibility for placement and

care upon removal—then Congress' inclusion of placement responsibility as an eligibility requirement is without meaning. [*Id.*]. This fails to consider both the intended uniform application of Title IV-E's requirements, and the statute's other provisions that shape the concrete duties each state agency must carry out in administering the program.

In discerning the meaning of a statutory term, it is a court's paramount duty to respect Congress's textual choices. *See SAS Inst., Inc. v. Iancu*, --- U.S. ---, 138 S.Ct. 1348, 1359 (2018) (A court's "duty is to give effect to the text that 535 actual legislators (plus one President) enacted into law"). To understand what Congress means by "responsibility" for "placement and care" within Section 672, the words of the text should be understood in their ordinary, everyday meanings unless context indicates a term bears a technical meaning. *See Norfolk Southern Ry. Co. v. Perez*, 778 F.3d 507, 512 (6th Cir. 2015) ("We must presume that Congress says what it means and means what it says"). And it is equally important that this term should not be evaluated in isolation, but instead should be construed in concert with the whole act. *Richards v. United States*, 368 U.S. 1, 11 (1962). In short, "context counts." *Envtl. Def. v. Duke Energy Corp.*, 549 U.S. 561, 576 (2007).

Viewed in its proper context, Section 672(a)(2) does not condition FCMP eligibility upon the Cabinet's legal custody.

1. The Cabinet maintains placement responsibility even when removed children are not placed into its legal custody

For the Cabinet to bear *responsibility*, it must be "answerable," or "accountable," for the children in accordance with a "trust, duty, or obligation." BLACK'S LAW DICTIONARY (11th ed. 2019). In adding "placement and care" modifiers to "responsibility," Congress naturally limits the extent to which the Cabinet must remain answerable or accountable for the removed children. The remainder of the statute and federal regulations impose numerous requirements of participating states, acting through their Title IV-E state agencies, that shape and inform what "placement and care responsibility" mean in the overall context of the state agency's *responsibility* within the federal program.

The district court appears to have found the Cabinet's "placement" responsibility nonexistent outside of legal custody because, following removal, state courts routinely place children into the temporary custody of qualified caregivers without first ordering the children into the Cabinet's legal custody. [*See* Memorandum Op. & Order, R. 128, Page ID

#3739-40]. According to the district court, because the Cabinet lacks authority to unilaterally move a child when the Cabinet does not have legal custody, the Cabinet cannot be said to have "placement" responsibility for the child. [*Id.*]. This neglects, however, the Cabinet's concrete obligations to investigate, approve, and recommend the child's initial, temporary placement to the court, and ignores:

- The Cabinet's *ongoing* responsibility to reunite the child safely with parents, if feasible, or seek parental rights termination;
- The Cabinet's responsibility to monitor and report to court on the child's progress in temporary care;
- The Cabinet's *duty* to remove the foster child from a failed relative or fictive-kin foster home and re-place the child in the temporary custody of another approved or licensed caregiver;
- The Cabinet's responsibility to plan for the child's *permanent* placement and care; and
- The Cabinet's responsibility to recommend permanency for the child in final placement.

The Cabinet is the single state agency approved by the Department to administer Title IV-E in Kentucky. *See* 42 U.S.C. § 671(a)(2); *see also* KRS 605.130 (providing the Cabinet "shall, wherever possible . . . [l]ocate and plan for all children who are dependent, neglected, or abused"); KRS 194A.030(8) (assigning to the Cabinet's DCBS the responsibility for child

protection, foster care and adoption, permanency, and social services to support and enhance children and families). The Cabinet bears responsibility under federal law for both initiating the DNA removal process *and* for the temporary placement and care of the removed child with a licensed or approved caregiver. Every child removed in DNA court proceedings receives temporary foster care either because the court orders the Cabinet to take temporary legal custody or because it places the child into the temporary custody of a *Cabinet-licensed* or *Cabinet-approved* caregiver. Placement *responsibility*, as that term is understood in federal law, is not simply the unfettered discretion to control or dictate a removed child's temporary placement, but involves instead the Cabinet's ongoing *duty* and *obligation* to ensure the child is placed in a safe and supportive temporary custodial arrangement with a licensed or approved caregiver, to monitor that arrangement, and to prepare for the child's safe reunification with his or her parents or to plan for another alternative permanent placement.

These functions require the Cabinet to perform many services pursuant to its Title IV-E approved state plan, and the Cabinet equally maintains residual control even during temporary foster care. At the

outset, it is *the Cabinet* that invokes its executive authority to investigate allegations of neglect or abuse, substantiate such allegations, assess the need for support services, initiate removal proceedings, and plan for post-removal placement by identifying relatives or other potential temporary foster caregivers. [*See, e.g.,* KRS 620.030(6); 620.040(1)-(3); 620.050(4); 620.070; FCRPP 20(2); *see also* Petrie Depo., R. 98, at Page ID # 2752-54, 2772, 2788-89, 2791 (Cabinet makes placement recommendations)]. In this sense, both state and federal law prefer a child to be placed with a relative caregiver, but only if *the Cabinet* can find a suitable relative to approve and recommend to the court prior to the temporary custody hearing. And in emergency situations, even before the first court appearance, the Cabinet will typically have *already* investigated, removed and temporarily placed the child with an approved relative of fictive-kin foster caregiver. [*See, e.g.,* KRS 620.060; FCRPP 19].

But the Cabinet's placement responsibility does not cease following the DNA court's initial order concerning temporary custody. The Cabinet must monitor the progress under the child's treatment plan, and "*may change the child's placement* or treatment plan as the Cabinet may require." KRS 620.130(2); *see also* FCRPP 29 (Cabinet to file case

progress reports, safety and prevention plans, and permanency plan). And the child's *long-term*, *permanent* placement always remains the Cabinet's burden. *See* 922 KAR 1:140 §§ 3-10; 1:430 §§ 1(3) & 4(3)(b). The Cabinet is required to continue its efforts under Title IV-E to either return the child to his or her home of origin or place the child in the *permanent* custody of an approved caregiver. *See* 42 U.S.C. § 671(a)(15); KRS 620.130(2). The Cabinet is further required to seek termination of parental rights when the child's permanency plan requires adoption. *See* 42 U.S.C. § 675(E); KRS 620.180(2)(c); KRS 625.090(1)(a), (b), & (2)(j). The district court did not even acknowledge these ongoing functions.

Instead, the district court fixated on the false equivalency between the Cabinet's placement *responsibility* and the district court's requirement that the Cabinet possess *authority* to alter a placement. The court based its decision, in part, on the Cabinet's inability to "unilaterally make placement decisions" and its "inability to control placement." [Memorandum Op. & Order, R. 128, Page ID # 3739]. The Cabinet gladly encouraged this theory during oral argument below, stressing to the court that:

> . . . only the [removal] Court can exercise *authority* over the placement of the child. So the Cabinet only has placement

> *authority* when the child is in its custody. Otherwise, it has no responsibility, no *authority* in that instance.[4]

[Transcript, R. 157, p. 10 (emphasis added)]. But legal *responsibility* and legal *authority* are not one in the same.

The Cabinet's *responsibility* relates to its "duties" or "obligations" to carry out federal statutory tasks. BLACK'S LAW DICTIONARY (11th ed. 2019). *Authority*, on the other hand, relates to "the official right or permission to act . . . legally on another's behalf." *Id.* This in essence confers the "power of one person to affect another's legal relations." *Id.* Section 672(a)(2)(B) does not require the Cabinet to possess placement "authority," but instead only requires it to have "responsibility" for the

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[4] In explaining Kentucky's policy choices, the Cabinet also invoked a rationale that this Court has expressly repudiated. [*See id.* at p. 13 (explaining the Commonwealth's continued denial of FCMP benefits to relative or fictive-kin caregivers was due to their natural "incentives" as relatives/fictive kin to care for these particular children)]. This essentially paints the Cabinet's improper policy decisions as an unfortunate budgetary Sophie's Choice in deciding who gets benefits. This was rejected in *Glisson*. 847 F.3d at 383 ("To the extent the Cabinet's failure to make maintenance payments turns on the distinction between relative and non-relative foster care providers, it plainly violates federal law").

The district court nonetheless appeared equally influenced by this rationale, remarking that in "a perfect world there are no needy children," and that all removed children could "receive financial assistance from state and federal government." [Memorandum Op. & Order, R. 128, Page ID # 3746].

child's placement. Shifting the paradigm to oblige the Cabinet to possess placement *authority* would require the Cabinet to act beyond what Congress provided, and potentially beyond what is permissible under applicable state constitutional law.

In practice, and with particular focus on Kentucky, this dichotomy between Cabinet *responsibility* and *authority* aligns with state constitutional values and Kentucky's "unusually forceful" separation of powers. *See* Ky. Const. §§ 27, 28; *Legislative Research Comm'n v. Brown*, 664 S.W.2d 907, 912 (Ky. 1984). The Cabinet, as the designated single state agency, carries out executive functions under both federal and state law with respect to Title IV-E (and also Title IV-B). [*See* Petrie Depo., R. 98, Page ID # 2752-53, 2789-90]. But this does not mean it may usurp or carry out functions committed exclusively to the judicial branch under Kentucky state constitutional law.

In every DNA child's case in Kentucky, the Cabinet as an arm of the executive branch, is responsible for searching, identifying, investigating, and recommending to the court placement of the child with an appropriate relative or fictive-kin caregiver whom the Cabinet has previously approved to provide temporary substitute care for the child.

But the Cabinet does not, and cannot, issue custodial orders—that is and always remains in the province of the judicial branch. As a uniform law with nationwide application, Title IV-E does not envision disruption to state constitutional order, which may in part explain why Congress did not make legal custody an express requirement for benefit eligibility. To do so would make eligibility for the federal program completely dependent on a state judicial determination as to custody, which is completely beyond a state executive agency's control, and unnecessarily eviscerate the line between executive and judicial functions. [*See id.*].

While federal law specifies state agency actions and requires certain judicial determinations, it is flexible enough to accommodate "a variety of State-specific [judicial] practices" in carrying out the program's mandates. *See, e.g.,* Title IV-E Foster Care Eligibility Review, 65 Fed. Reg. 4020, 4034 (Jan. 25, 2000)(final rule).[5] Indeed, Congress provided an express rule of construction that proscribes any interpretation of Title IV-E as "precluding State courts from exercising their discretion to

[5] *See also* 65 Fed. Reg. at 4022 & 4036 (discussing why initially proposed rule definitions of "full hearing" and "temporary custody proceeding" were deleted from the final rule because the proposed definitions needed to be flexible and not limiting or unhelpful to States).

protect the health and safety of children." 42 U.S.C. § 678. Some DNA courts conclude that ordering temporary custody in a Cabinet-approved relative or fictive-kin caregiver is sometimes the preferred way to place a child for safety or health reasons than ordering custody in the Cabinet. An interpretation of Section 672(a)(2)(B)'s "responsibility" for "placement and care" as meaning the DNA court *must order custody* in the Cabinet for the child's FCMP eligibility violates this rule of construction.[6]

In this sense, the district court erred in believing that a DNA court's temporary custody order that places a child with a relative or fictive-kin caregiver in fact represents that court's exercise of a Title IV-E "placement" instead of the Cabinet. Judicial custody orders in every Kentucky DNA case simply follow the Cabinet's executive functions in

[6] Indeed, for a brief time after *Glisson*, Kentucky DNA courts had to place every child with, and in the custody of, the Cabinet "for what I like to call scintilla placements, until we can place them with somebody else so that they can become eligible for these [FCMP] funds." [Petrie Depo., R. 98, Page ID # 2752; *see also id.* at Page ID # 2762-63 (right after *Glisson*, local Cabinet social workers asked "to do something that [the Cabinet] never asked [the court] to do before . . . . to make these momentary placements . . . of children in foster care, so that these . . . [children] are going to be eligible for *Glisson* dollars. . . . [So] we placed the child – or the Cabinet would say, Judge, we want the child placed in the custody of the Cabinet. They wouldn't give me any other alternatives. . . . [Shortly afterward,] we stopped getting that request to do these momentary placements.")].

investigating, approving (or licensing) caregivers, and recommending the child's initial temporary custodial placement as well as its ongoing placement and care obligations. In the exercise of their judicial function, DNA courts must "place" the child by *assigning* temporary custody to either an approved (or licensed) caregiver or directly to the Cabinet. [*See* Petrie Depo., R. 98, Page ID # 2757-58 ("responsibility is a much different word" from placement "authority"]. When a child's parental custody is severed in a DNA removal proceeding, the court cannot leave the child in custodial *limbo*, but must immediately decide where the child will go. Ordering the child into temporary custody of a relative or fictive-kin caregiver, as opposed to the Cabinet, is not usurping the Cabinet's *responsibility* for the child's placement and care. [*See* Petrie Depo., R. 98, Page ID # 2771 (Cabinet "responsible" for informing of placement alternatives, "i.e., the word responsibility there")]. Instead, the court is exercising its discretion that Congress reserved to state judicial determinations made in the best interests of the child. 42 U.S.C. § 678.

This distinction is further exemplified by Congress's other textual choices within Title IV-E, with the district court's analysis departing

from federal regulatory definitions of foster care and foster family homes. Federal regulation defines "foster care" within Title IV-E to mean:

> 24-hour substitute care for children placed away from their parents or guardians *and* for whom the title IV-E agency has placement and care responsibility. This includes, but is not limited to, placements in foster family homes, foster homes of relatives, group homes, emergency shelters, residential facilities, child care institutions, and preadoptive homes.

45 C.F.R. § 1355.20(a) (emphasis added). This formal federal rule notably distinguishes and separates the initial placement of children "away from their parents or guardians" from the Title IV-E agency's "placement and care responsibility." *See id.* The grammatical arrangement of this federal definition of "foster care" highlights that initially placing a removed child into "substitute care," is independent of whether the Cabinet maintains "placement and care responsibility" demonstrating that these considerations are not one in the same.

By conflating the Cabinet's "responsibility" under federal law with the more exclusive legal "authority" under state law, the district court inappropriately altered the meaning of the federal statute. The correct meaning of "responsibility" reveals the central erroneous premise of the district court's opinion. The court's judgment below should be reversed and this Court should enter judgment in Appellants' favor.

2. Section 672(a)(2)(B) is not superfluous

Considering Section 672 within the context of the whole act quickly diminishes the district court's concern that legal custody must somehow form a component of "placement and care responsibility," without rendering this statutory component "superfluous" or "without meaning." *See Menuskin v. Williams*, 145 F.3d 177, 178 (6th Cir. 1998) (statute must be construed to "giv[e] effect to each word" and that does not render provision "inconsistent, meaningless, or superfluous"). A broader and proper analysis of the statute cures the district court's concern and reveals that Congress has, in fact, phrased precisely what it means for the state agency to have "placement and care responsibility" for a removed child regardless of formal legal custody.

Section 671(a)(1) and (2) make clear that a child's eligibility for Title IV-E funds requires the state agency to have an approved plan that includes designation of "a State authority or authorities to be responsible for foster family homes." *See also* 42 U.S.C. § 671(a)(10)(a). These duties are further informed under state law by KRS 605.130, which provides, for example, that the Cabinet's duties include supervising parental visitation with a DNA child, locating and planning for all DNA children,

cooperating with and assisting DNA courts, assessing referrals to determine if a basis exists to file a DNA petition, and performing other services as needed to protect children. *See also* KRS 600.040(2) (Cabinet is "responsible" for "facilities, programs, and services" under the Juvenile Code, which encompasses KRS Chapters 600-645); KRS 199.462 (Cabinet must conduct criminal background checks on prospective caregivers).

A qualifying state plan requires the designated state agency to make reasonable efforts to:

- preserve and reunify families to prevent removal or safely return the child to the home of origin (except in certain criminal situations)[7];
- identify appropriate in-State and out-of-State placements concurrently with efforts to reunify; and
- timely place the child pursuant to a permanency plan and timely complete the steps to finalize that plan when reunification is impossible.

42 U.S.C. § 671(a)(15). Federal law further tasks the state agency with using reasonable efforts to place siblings in the same foster care or kinship-guardian arrangement when safe and appropriate. *Id.* at §

[7] The state plan includes separate procedures in instances in which the parent committed certain criminal acts against the child or the child's sibling. 42 U.S.C. § 671(a)(15).

671(a)(31). Moreover, the Cabinet is tasked with exercising due diligence to identify and notify relatives of DNA proceedings, describing to them foster family home requirements and explaining their options (42 U.S.C. § 671(a)(29)), and with preferring placement of the removed child with relatives. *Id.* at § 671(a)(19).

Under Kentucky's Title IV-E state plan, the Cabinet is responsible for fulfilling these federal requirements. With rare exception, the Cabinet is *solely* responsible under Kentucky's Juvenile Code for *all* "[f]acilities, programs, and services" to DNA children, and specifically charged with "locat[ing] and plan[ning]" for every DNA child. *See* KRS 600.040(2), 605.130(1). On behalf of the Commonwealth, the Cabinet must "direct its efforts" to providing DNA children a safe, nurturing home with needed services to address family issues. *See* KRS 600.010(2)(b); 620.050(15)(b)-(c); 620.052. A child is not to be removed unless absolutely necessary and after the Cabinet has considered the least restrictive alternative placement and services. *See* KRS 600.010(2)(c); KRS 620.090(1) & (2).

If a child is removed, temporary custody must be ordered to the Cabinet or to another appropriate person, and the Cabinet is responsible for locating and identifying potential relative or fictive kin caregivers,

and recommending the least restrictive placement, preferring qualified relatives, and evaluating or arranging placement with siblings. *See, e.g.,* KRS 620.090(1) & (2); 620.140(1)(c); 620.050(15)(a); FCRPP 16(2) (Cabinet to inform of names/addresses of relatives, etc.); *see also* Petrie Depo. R. 98, Page ID # 2788-89 (Cabinet to inform of reasonable efforts, placement options, and recommends least restrictive placement and services). Before recommending a placement option to the court, the Cabinet is tasked with background checks and home evaluations on the prospective caregiver. *See, e.g.,* KRS 199.462; KRS 620.051; 922 KAR 1:490 §§ 5 & 6; *see also* Petrie Depo. R. 98, Page ID # 2752-53, 2762, 2770-72 and Depo. Ex. 6, R. 98-6, Page ID # 2875 (Cabinet recommends placement after performing background check and home evaluation).

Moreover, federal statutes require each removed child to have a "case plan," with the state agency establishing and maintaining same in a "case review system." 42 U.S.C. § 671(a)(16). Kentucky makes the Cabinet responsible for this. *See* KRS 600.050(1)(b) & (2) (Cabinet to document DNA child's need for protection in official case file); 605.130(1) (Cabinet to "locate and plan" for every DNA child); 605.120(5)(a) (Cabinet to track and analyze DNA case data, placement, services, outcomes, and

permanency benchmarks); 620.180(2)(c), 625.090(1)(a), (b) & (2)(j) (Cabinet's seeking termination of parental rights when adoption is the child's permanency plan). Federal law requires the "case plan" to ensure the child receives safe, proper temporary care and family services to facilitate a safe return home or another planned permanent *placement*. 42 U.S.C. §§ 675(1)(B), 675a. Kentucky requires the Cabinet to perform this as well. *See, e.g.,* KRS 620.130(2) (Cabinet to design and change, as needed, the removed child's treatment plan to meet the child's needs, and change the child's placement as required); 620.240 (Cabinet to file case progress reports at least every six months); 922 KAR 1:140 & 1:430 (Cabinet provides services for case and permanency planning for in- and out-of-home children); FCRPP 27 & 28 (filing and service of dispositional, case progress, and permanency progress reports); Petrie Depo. R. 98, Page ID# 2782-83, 2789-92, 2786 (the Cabinet prepares and files the dispositional, case progress, and permanency progress reports).

Specific to children initially placed with a relative, federal law requires the state agency's permanency plan for the removed child to address why he or she should not be returned home, whether sibling separation will occur, whether permanent *placement* with the relative is

in the child's best interest, and the agency's efforts to discuss adoption or legal guardianship with the relative. 42 U.S.C. § 675(1)(F); *see also* 42 U.S.C. § 675(5) (concerning "case review system" which includes, among other criteria, the need and appropriateness of the child's placement). Again, Kentucky tasks the Cabinet with each of these federal requirements. *See, e.g.,* KRS 620.240 (prescribing multiple factors for the Cabinet to address in case progress reports); 922 KAR 1:140 & 1:430 (Cabinet provides services for case planning and permanency planning); FCRPP 28 (in-court filing of case and permanency progress reports); *see also* Petrie Depo. R. 98, Page ID # 2792 (per FCRPP 28, the Cabinet files case plans, case reports, and permanency progress reports).

In short, each of the placement and care requirements for which a state agency must have *responsibility* under Title IV-E, has a state-law counterpart that *assigns* to the Cabinet the *duty* and *obligation* to perform, supervise, or manage under Kentucky law and practice.[8]

[8] This discussion concerns only *some* of Title IV-E's requirements and is not exhaustive. State law, however, ascribes corresponding *responsibility* to the Cabinet that aligns with each federal requirement, as set out comprehensively in Kentucky's approved state plan. Appellants previously introduced a non-exhaustive, yet more complete chart showing the alignment between various federal placement and care responsibility requirements and corresponding state law. (*Continued*)

Notably absent, however, from any of the federal provisions is any reference to the state agency's formal legal custody. That is because Congress, in enacting Title IV-E, envisioned a national program conferring broad standards of eligibility. It was not enacted to usurp state court judicial determinations. Congress extended to the state agency clear duties and responsibilities independent of residual state judicial powers that must co-exist to provide due process, to oversee the agency, and to hold it accountable for following its statutory responsibilities.

B. The District Court's Ruling Imposes a Non-Textual Prerequisite to FCMP Benefits at Odds with Federal Law

Despite the Cabinet's insistence that formal custody is analogous to "placement and care responsibility," there is no legal custody requirement on the face of the statute. Congress undoubtedly knows of the concept of legal custody, and it easily could have stated this concept in specifying the criteria for FCMP eligibility. It instead expressly chose *not* to do so, and there is no mention of state custody in *any* of the

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(*Continued from prior page*) *See* R. 157, pp. 24, 48-49 (Page ID # not available); Hearing Exhibits 1 & 2 (9/19/2019) (included in Appendix hereto).

associated references to foster care in any of the surrounding provisions. *See, e.g.,* 42 U.S.C. §§ 671, 672(a), 672(b), 672(c), 675 and 675a.

An absent provision from a statutory text may not be supplied by a reviewing court. *See Lomax v. Ortiz-Marquez*, --- U.S. ---, 140 S.Ct. 516 (2020) (a court may not narrow a federal statutory provision's reach by inserting words Congress chose to omit); *United States v. Mahaffey*, 983 F.3d 238 (6th Cir. 2020) (courts will ordinarily resist reading words or elements into a statute that do not appear on its face); *see also* Antonin Scalia & Bryan A. Garner, READING LAW: THE INTERPRETATION OF LEGAL TEXTS 94 (2012). Nothing may be added to what the text actually states or reasonably implies. *Jama v. Immigration & Customs Enforcement*, 543 U.S. 335, 342 (2005) ("We do not lightly assume that Congress has omitted from its adopted text requirements that it nonetheless intends to apply"); Scalia & Garner at 93 (the "omitted-case canon").

In that same vein, when Congress selects general terms, the words used in the statutory text must be afforded their *full and fair scope*, and cannot be arbitrarily limited. *See id.* at 101 (general-terms canon). By enacting general words, Congress produced *general coverage*, and courts may not diminish that general coverage through any *ad hoc* exceptions.

Applying these standards to Section 672(a)(2), it is apparent that Congress carefully chose the meaning of the text in Title IV-E and consciously elected to use general terms in enumerating the criteria for FCMP eligibility. The Cabinet—and the district court—narrow the scope of the text by requiring the agency to have formal legal custody, but that imposes an overly restrictive interpretation of Section 672 that is at odds with the plain meaning of the existing statutory text.

Congress is completely aware of the existence of state-court removal and custody proceedings and the role that state judicial determinations must play in these child welfare proceedings. Indeed, FCMP eligibility expressly references the judicial process, with the first element requiring "a *judicial* determination to the effect that continuation in the home from which [the child is] removed would be contrary to the welfare of the child and that reasonable efforts . . . have been made." 42 U.S.C. § 672(a)(2)(A)(ii) (cross-referencing 42 U.S.C. § 671(a)(15)) (emphasis added). Congress also knows how to use language that could require legal custody because it expressly did so in defining "legal guardianship" as a "*judicially* created relationship . . . intended to be permanent . . . by the transfer to the caretaker of the following

parental rights with respect to the child: . . . care and control of the person, [and] *custody of the person*." 42 U.S,C, § 675(7) (emphasis added).

Congress expressly required certain state judicial determinations to be made for one criteria of FCMP eligibility, but declined to require the same for placement and care responsibility. This exclusion is telling—where "Congress includes particular language in one section of a statute but omits it in another . . . it is generally presumed that Congress acts intentionally and purposefully in the disparate inclusion or exclusion." *See Byers v. United States Int. Rev. Serv.*, 963 F.3d 548, 553 (6th Cir. 2020) (quoting *Keene Corp. v. United States* 508 U.S. 200 (1993). If Congress wished to require the state agency to have a formal legal custody before a removed child could become eligible for FCMP benefits, "it would have done so in the text of the statute." *Id.* at 554. It did not.

Instead, federal law more broadly defines a state agency's role in undertaking and bearing "responsibility" for a removed child's placement and care. The federal concept of that role is shaped by an agency's statutory and regulatory duties to investigate, make initial placement determinations, and provide recommendations to state court concerning temporary custodial arrangements. But each of the agency's duties and

obligations are articulated in federal statute, federal rules, or federal regulatory guidance.

The Cabinet nonetheless contends that state law is determinative as to Appellants' FCMP eligibility, and the district court entertained this theory. [*See* Transcript, R. 157, p. 9 (Page ID # not available) ("state law defines who has placement and care responsibility for children")]. According to the Cabinet, there can be no "definition of placement and care responsibility without referring to state law." [*Id.*]. This is incorrect. When Congress enacts a federal program with a unitary nationwide application, the application of that program cannot turn on the application of state law, and administering states may not limit or restrict the reach of the federal program through their own legislative or administrative processes.

In the context of child welfare, the programs Congress established under the Social Security Act are "highly centralized, with important policies established at the national level and implemented by the states." Ann Laquer Estin, *Sharing Governance: Family Law in Congress and the States*, 18 CORNELL J. L. & PUB. POL'Y 267, 294 (2009). This reflects "Congress's judgment that these policies are too important to be left to

the vagaries of state law and politics." *Id.* And "[b]y insisting on a unified national approach to public assistance, child welfare, foster care . . . Congress has defined a minimum standard of public care and support to which every child in the nation is entitled." *Id.* Congress's concern over state law variation impinging its unified national program is confirmed in the reasoning behind the definitions in 45 C.F.R. § 1355.20(a). *See* Data Collection for Foster Care and Adoption, 55 Fed. Reg. 39540-01, 34545 (Sept. 27, 1990) ("adoption" and "foster care" are defined broadly because their meaning "often var[ies] from State to State, [therefore] both these terms are defined so as to assure *consistency in usage and understanding across States*" (emphasis added)).[9]

The opening presumption in interpreting cooperative federalism statutes, therefore, is the assumption that "in the absence of a plain indication to the contrary" when Congress enacts a statute, it does not "mak[e] the federal act dependent upon state law." *Mississippi Band of Choctaw Indians v. Holyfield*, 490 U.S. 30, 43-44 (1989) (quoting *Jerome v. United States*, 318 U.S. 101, 104 (1943)). This is primarily because

[9] Congress adopted § 1355.20(a)'s definition of "foster care" in a related federal youth welfare program. *See* 42 U.S.C. §290bb-7a(c)(2)(B) (2018).

federal statutes are intended to have uniform nationwide application, and the exceptions to this rule of construction largely stem from statutory terms in federal programs where such uniformity was not clearly intended. *Id.* (referring to *RFC v. Beaver County*, 328 U.S. 204 (1946)). The rule also exists because of the fear that "the federal program would be impaired if state law were to control." *Id.*; *Jerome*, 318 U.S. at 104.

Federal law—and only federal law—controls the minimum standards for FCMP eligibility. *See Adoptive Couple v. Baby Girl*, 570 U.S. 637, 649 (2013) (concerning Congress's role in establishing minimum Federal standards under the Indian Child Welfare Act). Kentucky state law and administrative policy cannot dictate whether "custody" is or is not required as to the meaning of "placement and care responsibility" under *federal law*. Section 672 does not require formal legal custody. The Cabinet may not unilaterally heighten minimum eligibility standards, nor may it affix meaning to that term for Congress.

C. The District Court's Decision is Inconsistent with Clear Federal Regulation and Guidance That is Entitled to Deference Over Conflicting State Law

The district court's holding also stands in stark contrast to federal interpretive guidance to states in carrying out their approved Title IV-E

plans. *See* 45 C.F.R. Pts. 1355 & 1356. Indeed, the Department—through the Administration for Children and Families ("ACF")—has expressly rejected any legal custodial requirement, definitively stating that "*custody of the child is not a requirement of Federal law or policy under Title IV-E and the State agency need not be given custody*." [ACF CHILD WELFARE POLICY MANUAL, R. 79-4, Page ID # 1878-91 (emphasis added)].

The Child Welfare Manual is consistent with other published guidance from the Department of Health and Human Services' Administration for Children, Youth, and Families Children's Bureau, which again explains that *responsibility* for placement and care under Section 672 does not require state agency custody:

> The term "placement and care" means that the title IV-E agency is legally *accountable* for the day-to-day care and protection of the child who has been placed in foster care through [] the requisite judicial determination . . . *Placement and care responsibility allows the title IV-E agency to make placement decisions about the child. It also ensures that the title IV-E agency provides the child with the mandated statutory and regulatory protections*, including those in regards to case plans, administrative reviews, permanency hearings, and updated health and education records.
>
> ***Legal custody.*** *. . . The title agency need not be given legal custody of the child because legal custody by the title IV-E*

> *agency or another public agency is not a requirement under title IV-E*

[Title IV-E Foster Care Eligibility Review Guide (2012), p. 38 (emphasis added, bold-face in original)].[10]

This is further confirmed by the Department's (and ACF's) notice-and-comment regulations. Those regulations define "foster care" as "24-hour substitute care for children placed away from their parents or guardians and for whom the Title IV-E agency has placement and care responsibility." 45 C.F.R. 1355.20(a), subsequently incorporated at 42 U.S.C. § 290bb-7a(c)(2)(b) (2018). This care "includes, but is not limited to, placements in foster family homes, foster homes of relatives, group homes, emergency shelters, residential facilities, child care institutions, and preadoptive homes." *Id.* The ACF further clarifies "[a] child is in foster care in accordance with this definition regardless of whether the foster facility is licensed and payments are made by the State." *Id.*; *see also* Notice of Proposed Rulemaking, 55 Fed. Reg. 39540-01, 39545 (Sept. 27, 1990) ("The definition of 'foster care' encompasses all out-of-home, 24 hour, substitute care for children under the responsibility and care of the

[10] This resource is available online at: https://www.ach.hhs.gov/sites/default/files/documents/cb/title_iv_e_review_guide.pdf

title IV-B/IV-E agency regardless of who provides the substitute care, whether or not there is a State payment, or whether or not the foster care facility is licensed.").

Those same regulations define FCMP benefits as "payments made on behalf of a child eligible for Title IV-E foster care to cover the cost of . . . food, clothing, shelter, daily supervision, etc." 45 C.F.R. 1355.20(a). In turn, "daily supervision" includes "foster family care," when foster parents are prevented by their work schedules "from being at home when the child for whom they have care and placement responsibility in foster care is not in school." *Id.* Each of these regulations confirm that "placement and care responsibility" is a far broader and generalized eligibility requirement than the overly restrictive eligibility criterion the district court's judgment adopts. Nowhere in any of the federal regulations or regulatory interpretive guidance is there any indication that state custody is a prerequisite to FCMP eligibility.

As a general matter, courts defer to a federal agency's interpretation of its own enabling act, in addition to its rules and regulatory schemes. *See Chevron U.S.A., Inc. v. Nat. Res. Def. Council, Inc.*, 467 U.S. 837, 844 (1984) (federal courts defer "to an executive

department's construction of a statutory scheme it is entrusted to administer"); *Auer v. Robbins*, 519 U.S. 1997) (federal courts defer to an agency's construction of its own rules and regulations to impart, *inter alia*, "predictability" and "consistency" in regulatory law). And if regulatory ambiguity exists, federal courts follow the rebuttable presumption "that Congress would generally want the agency to play the primary role in resolving" uncertainties. *Kisor v. Wilkie*, 558 U.S. ---, 139 S.Ct. 2400, 2412 (2019). Courts deem the power to interpret an agency's regulations to be "'a component of the agency's delegated lawmaking powers.'" *Id.* (quoting *Martin v. Occupational Safety and Health Review Comm'n*, 499 U.S. 144, 151 (1991)). When regulatory ambiguity truly exists, deference is appropriate when the agency's reading is reasonable in light of the text, structure, and history of the regulation, and in some way implicates the agency's substantive expertise. *Kisor,* 139 S. Ct. at 2415-17.

In this instance, Appellants maintain that the statutory text is clear and unambiguous that legal custody is not determinative of the meaning of "placement and care responsibility." Indeed, only a belabored analysis that overly constricts the text and begs ambiguity supports an

opposite conclusion. But if there is any doubt as to the meaning of the state agency being "responsible" for "placement and care," those uncertainties are vanquished by federal regulatory guidance.

The ACF is the federal agency tasked with administering this component of Title IV-E. And in both its published Child Welfare Manual and the Title IV-E Foster Care Eligibility Review Guide, the ACF has expressed its clear interpretation of the law that state custody is *not* a prerequisite for FCMP eligibility as a matter of course. State agencies not only are prohibited from enacting laws and regulations constricting federal minimum eligibility standards, but they must also defer to the ACF's clear guidance that directly conflicts with state policy. The Cabinet's position stands in stark contrast with this unambiguous federal guidance, which is entitled to judicial deference.

D. The District Court's Ruling Undermines Application of Title IV-E

Notwithstanding the district court's textual errors, the lower court's ruling is equally at odds with both this Court's decision in *Glisson* and standard practices relied upon by juvenile and family court judges across the country.

First, the district court's ruling stands in conflict with this Court's ruling in *Glisson*. The underlying facts of that case involved two brothers, D.O. and A.O. "A.O. was initially placed [in 2013] with the person who made the petition, a non-relative placement, and D.O. was initially placed in foster care [also in 2013]." 847 F.3d at 383. While in "foster care," the Cabinet placed D.O. with his maternal great aunt, R.O.. *Id.* A.O. having been "initially placed" by court order into the care of the non-relative "person who made the petition," was later transferred by later court order in 2014 and placed with R.O. as well. *Id.* at 382. Though the issues on appeal in *Glisson* were not identical to those currently before the Court, the panel plainly stated "there is no doubt that the Cabinet obtained *responsibility* for the children *when the family court removed them from their mother's home*." 847 F.3d at 381 (emphasis added).

At a minimum, *Glisson* signifies the Cabinet's shifting priorities since that ruling was issued. Prior to 2017, the Cabinet did not dispute that it maintained "placement and care responsibility" for removed children as long as it was free to openly discriminate against children placed with relatives (and now, fictive kin). But once this Court ended that practice with *Glisson*, the Cabinet immediately pivoted its position

to neuter *Glisson*'s impact altogether. Appellants are left to conclude the Cabinet intends for FCMP to remain a moving target, seemingly always out of reach for children placed with relative or fictive-kin caregivers.

Moreover, and outside of *Glisson*, the district court's ruling stands out as anomalous to how state court judges across the country view and apply Title IV-E. Generally speaking, Kentucky family and juvenile courts collaborate with the Cabinet as part of a "team approach" to DNA proceedings. [Petrie Depo., R. 98, Page ID # 2772-73, 2795-96]. And this approach is consistent with the "dual role" that Congress envisioned for the state agency and state courts to play "in every case involving a child that comes before the courts." [*Id.* at Page ID # 2773]. "The courts and the Cabinet [state agency] work together to make sure a safe, permanent, and stable home is secured for each abused and neglected child." [*Id.* at Page ID # 2772].

The Cabinet itself espouses this team approach, and instructs its employees in Standard Operating Procedure (SOP) 11.1 (2018) as follows:

> The [Cabinet] Social Service Worker (SSW) is central to the provision of child protective services and . . . the entire abuse, neglect and dependency court process . . . . [T]he SSW is . . . acting in an evidence gathering function [for court], while at the same time completing a thorough assessment of family strengths and needs, and coordinating the provision of

> services to address issues related to the [child's] maltreatment. . . . The primary focus of the SSW is the safety of the child . . . . [T]he SSW carefully balances the circumstances in the home with the potential trauma to the child should the child be placed elsewhere. Both decisions have very significant long term implications for the child.
>
> The SSW should understand . . . the court process. . . . Victims of child abuse and neglect come before [state] court judges for protection from further harm and for timely decision making for their future. . . . [J]udges make critical legal decisions and oversee social service efforts to rehabilitate and maintain families, or to provide permanent alternative care for child victims. *Courts and the Cabinet work together to make sure a safe, permanent and stable home is secured for each abused and neglected child.*

[R. 98-6, at Page ID # 2876-77 (emphasis added); Petrie Depo., R. 98, at Page ID #2772].

This team approach recognizes a clear division in duties and responsibilities. State courts judicially oversee the Cabinet, holding it accountable for its statutory responsibility to use "reasonable efforts" to prevent removal in the first place, and to ensure those same efforts are employed in attempts to ultimately reunite each child with his or her parents. [*Id.* Page ID # 2783-84, 2787-88]. State courts similarly ensure the Cabinet is timely and properly performing its other duties associated with the child's temporary placement and care, including ensuring the Cabinet is monitoring the child's home and family, preparing and filing

case plans for the child, case progress reports, safety and prevention plans, and other reports pertaining to the child's welfare while in foster care. [*Id.* at Page ID # 2782-83, 2780-90].

The courts, in turn, expect and rely upon the Cabinet to "approve the temporary caregiver," and to "monitor . . . placement in every case." [*Id.* at Page ID # 2771]. It is the "standard practice for judges throughout the Commonwealth" to "absolutely rely on the Cabinet *in every stage in the proceedings*." [*Id.* at Page ID # 2789]. This includes reliance on the Cabinet's investigation and recommendations concerning the child's placement. [*Id.*]. In essence, Kentucky courts understand that it is the Cabinet's statutory responsibility to "[l]ocate and plan for all children w[ho] are dependent, neglected, or abused," and that the Cabinet maintains "care and responsibility for all [children] that come before the court." [*Id.* at Page ID # 2769, 2772 (referring to R. 98-6, at Page ID # 2876, quoting KRS 605.130)]. Indeed, "[t]he Cabinet [i]s responsible for reporting to the [DNA c]ourt about what [i]s going on with these [children] . . . pretty much at all times." [*Id.* at Page ID # 2769].

Kentucky's "team approach" closely tracks the national best practices recommended by the National Council of Juvenile and Family

Court Judges ("NCJFCJ"), which are similarly endorsed by the Conference of Chief Justices and the Conference of State Court Administrators. [*See* NCJFCJ Guidelines, [R. 98-12, Page ID # 2942-43, 2952; NCJFCJ 2016 Enhanced Guidelines, R. 98-8, Page ID # 2900-01].[11] These national guidelines equally understand that the role of state courts in DNA proceedings is to work collaboratively with the single State agency to ensure the agency is properly doing its job. [*See* Petrie Depo., R. 98, Page ID # 2772-74, 2795-96; NCJFCJ 2016 Enhanced Guidelines, R. 98-6, Page ID # 2902, 2906, 2908-09]. Judicial oversight and leadership play critical roles in Title IV-E administration, but these best practices for state courts do not negate the agency's sole "responsibility" for a removed child's "placement and care" under Section 672. [*See id.*; NCJFCJ Guidelines, R. 98-12, Page ID # 2961-2963; NCJFCJ 2016 Enhanced Guidelines, R. 98-8, Page ID # 2899-2900, 2902-03, 2908-09].

The district court below simply misunderstood what it means for the Cabinet to possess "placement and care *responsibility*" under the federal statute, conflating the DNA court's judicial oversight with the

[11] A complete copy of the NCJFCJ 2016 Enhanced Guidelines can be located online at https://www.ncjfcj.org/publications/enhanced-resource-guidelines.

Cabinet's statutory responsibilities for each child's placement and care. Prior to this litigation, the Cabinet has historically "forcefully stated their position that they have an *extreme* and *important* role to play" in DNA cases and demanded to be recognized for such. [Petrie Depo., R. 98, Page ID # 2795 (emphasis added)]. Kentucky DNA court judges have always considered the Cabinet to possess responsibility for the child's placement and care following removal, and "candidly" are "somewhat flummoxed" by the Cabinet's reversed posture in this case. [*Id.*].

The Cabinet's posture in this litigation (as endorsed by the district court below) is contrary to *Glisson* and the Cabinet's own historical practices. It is equally inconsistent with how state courts across the country view their own role in the overall Title IV-E scheme. The Cabinet's newfound "legal custody" requirement is built on a false narrative that would unnecessarily disrupt the relationship between the Cabinet and Kentucky family and juvenile courts. This Court should reverse.

CONCLUSION

The Sixth Circuit should reverse the district court, grant judgment in Appellants' favor, and remand to the district court to enter injunctive relief consistent with this Court's ruling.

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CERTIFICATE OF COMPLIANCE

In accordance with Federal Rule of Appellate Procedure 32(a)(7)(c) and Sixth Circuit Rule 32, the undersigned counsel certifies that this brief complies with the type-volume limitations of Fed. R. App. 32(a)(7)(B).

Exclusive of the Exempted Portions listed in Federal Rule of Appellate Procedure 32(a)(7)(B)(iii) and Sixth Circuit Rule 28(b), this brief contains 11,035 words. Further, this brief has been prepared in proportionally spaced typeface using Microsoft Word 2016 in Century Schoolbook 14-point font.

The undersigned counsel understands that a material misrepresentation in completing this certificate, or circumvention of the type-volume limits in Federal Rule of Appellate Procedure 32(a)(7)(B), may result in the Court's striking the brief and imposing sanctions against the person signing the brief.

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CERTIFICATE OF SERVICE

I hereby certify that on April 23, 2021, I electronically filed the foregoing with the Clerk of the Court for the United States Court of Appeals for the Sixth Circuit by using the CM/ECF system. Participants in the case who are registered CM/ECF users will be served by the CM/ECF system.

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DESIGNATION OF RECORD

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31-1	Second Amended Complaint	198 - 241
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35	Amended Complaint	254-297
67-14	Deposition Excerpts of K.G. pp. 9 – 15 filed under seal	Page ID not available
71-11	Deposition Excerpts of R.W. pp. 23-24 filed under seal	Page ID not available
79	Motion for Preliminary Injunction	1797-1839
79-4	ACF Child Welfare Policy Manual	1878-1891
79-5	Deposition of L. Estill	1896

79-9	**KAR 1:140, 1:140E and 1:320**	**1934, 1940, 1947**
80	**Motion for Class Certification**	**2230-2258**
96	**Cabinet Motion for Summary Judgment**	**2575-2599**
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